Here, Plaintiff Bank asserts that the parties entered into a settlement agreement pursuant tot Code of Civil Procedure section 664.6 on July 26, 2024. (Declaration of Ren; Exhibit A). The total settlement agreement was for Defendant Sayadi to pay Plaintiff $2,300.00 by December 15, 2025. Monthly payments of $100.00 was to be paid on or before February 15, 2024 with continual $100.00 monthly payments until December 15, 2025. (*Id.*). The agreement also addressed that failure to comply with the payment schedule may result in a default. (*Id.*). The written settlement agreement indicated the total amount, scope, and payment terms of the settlement. The settlement agreement was signed by all of the parties to the agreement and filed with the Court. Defendant failed to make payments starting on May 15, 2024 to the present. The last payment received was on April 5, 2024. Plaintiff seeks damages of $4,537.89 as in its Complaint with a $300.00 credit for a total outstanding principal of $4,237.89. (*Id.*). Thus, Plaintiff has met its burden.

Plaintiff's counsel filed a memorandum of costs in the amount of $293.50 compromised of a $225.00 filing and motion fees as well as a $68.50 service of process fee.

In total, the plaintiff seeks a total judgment in the amount of $4,531.39.

IV. <u>CONCLUSION</u>

Based on the foregoing, and the motion being unopposed, the Court GRANTS the motion to enter judgment in favor of Plaintiff Bank in the amount of $4,531.39 against Defendant Sayadi. The Court will prepare the Order.

Calendar Lines # 6

Case Name Nemat Maleksalehi et al vs Baudeli Plastering, Inc. et al

Case No. 24CV442712

Motion to Approve Good Faith Settlement

I. <u>BACKGROUND</u>

This breach of contract claim stems from a construction defect claim of a single family home in Saratoga. Plaintiffs Nemat and Maryam Maleksalehi filed a Complaint on July 9, 2024. Subsequently, other defendants, cross complainants, and cross-defendants were brought into the action. Cross defendant Shawn Malek and the Malek Family Real Estate, LLC were dismissed on December 1, 2025. There are also three notices seeking approval of settlement from other parties including: defendant Baudeli Plastering Inc., defendant Edessa Corporation d/b/a Naddours Ornamental Iron, and this motion. Before the Court today, is defendant TBS Design Gallery, Inc. ("TBS")'s application for determination of a good faith settlement that was filed on May 14, 2026. The motion was accompanied by a proof of service on May 14, 2026 indicating electronic service on the plaintiff's as well as non-settling parties.

The motion is unopposed. Code of Civil Procedure section 877(a)(2) requires an opposition by any non-settling parties within 25 days of mail notice or June 8, 2026 and Code of Civil Procedure section 1005(b) opposition papers were due on May 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following: Defendants TBS's notice, memorandum of points and authorities, Declaration of Nora R. Boardman in support of TBS's application for good faith settlement, and proof of service to all parties (totaling 11 pages).

II. <u>LEGAL STANDARD</u>

Pursuant to California Code of Civil Procedure, Section 877.6(c), "A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." Section (d) provides that the party asserting the lack of good faith shall have the burden of proof on that issue.

Under Code of Civil Procedure section 877(a)(2): "In the alternative a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order. The application shall indicate the settling parties, and the basis, terms, and amount of the settlement. The notice, application, and proposed order shall be given by certified mail, return receipt requested, or by personal service. Proof of service shall be filed with the court. Within 25 days of the mailing of the notice, application, and proposed order, or within 20 days of personal service, a non-settling party may file a notice of motion to contest the good faith of the settlement. If none of the non-settling parties files a motion within 25 days of mailing of the notice, application, and proposed order, or within 20 days of personal service, the court may approve the settlement. The notice by a non-settling party shall be given in the manner provided in subdivision (b) of Section 1005. However, this paragraph shall not apply to settlements in which a confidentiality agreement has been entered into regarding the case or the terms of the settlement.

The court also considers the factors set forth in *Tech-Built, Inc.* that include:

(1) "a rough approximation of plaintiffs' total recovery";
(2) "the settlor's proportionate liability";
(3) "the amount paid in settlement";
(4) "the allocation of the settlement proceeds among plaintiffs";
(5) "a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial";
(6) the settling party's "financial conditions and insurance policy limits"; and
(7) any evidence of "collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants." (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates, supra*, 38 Cal.3d at 499).

"Practical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement." (*Id.*)

The "good faith" concept in Code of Civil Procedure section 877.6 is a flexible principle imposing on reviewing courts the obligation to guard against the numerous ways in which the interests of nonsettling defendants may be unfairly prejudiced. (*Rankin v. Curtis* (1986) 183 Cal. App. 3d 939, 945). Accordingly, under *Tech-Bilt*, the party asserting the lack of "good faith" may meet this burden by demonstrating that the settlement is so far "out of the ballpark" as to be inconsistent with the equitable objectives of the statute. (*Tech-Bilt, supra,* 38 Cal.3d at 499-500). Such a demonstration would establish that the proposed settlement was not a "settlement made in good faith" within the terms of section 877.6. (*Id*.). Pursuant to California Code of Civil Procedure, section 877.6(c), "A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." Section (d) provides that the party asserting the lack of good faith shall have the burden of proof on that issue. "Good faith may be found only if there has been no collusion between the settling parties and where the settlement amount appears to be within the ‘reasonable range’ of the settling party’s proportionate share of comparative liability for a plaintiff’s injuries. (*North County Contractor’s Assn. v. Touchstone Ins. Services* (1994) 27 Cal.App.,4th 1085, 1089-1090).

When a good faith motion is contested, the moving parties bears the initial burden of producing evidence in support of the requested good faith determination. “Section 877.6 and *Tech-Bilt* require an evidentiary showing, through expert declarations or other means, that the proposed settlement is within the reasonable range permitted by the criterion of good faith.” (*Mattco Forge v. Arthur Young & Co.* (1995) 38 Cal.App.4th 1337, 1351). “Substantial evidence” is required. (*Id.* at p. 1352). A declaration from a settling defendant’s attorney that states, in conclusory fashion, that the client has little, or no share of the liability may not be sufficient. (*Greshko v. County of Los Angeles* (1987) 194 Cal.App.3d 822, 834-35; see also 3 Weil & Brown, California Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶¶ 12:774, 12:872-873). The ultimate burden of persuasion is on the party opposing the good faith determination. The “party asserting a lack of good faith shall have the burden of proof on that issue.” (Code Civ. Proc. § 877.6(d); see also 3 Weil & Brown, *supra,* at ¶ 12:875).

The law favors settlements. (*Potter v. Pacific Coast Lumber Co*., (1951) 37 Cal.2d 592, 602. Settlement agreements “are highly favored as productive of peace and goodwill in the community, and reducing the expense and persistency of litigation.” (*McClure v. McClure* (1935) 100 Cal. 339, 343). Indeed, it has been said that a major goal of section 877 is the ‘encouragement of settlements.’ *(Insurance Co. of North America v. United States Fire Ins. Co*., (1973) 34 Cal.App.3d 391, 396). Courts have made it clear that it is only under “rare” circumstances that a settlement will be found to be in bad faith. (*Stambaugh v. Pacific Gas and Electric Company* (1976) 62 Cal.App.3d 231, 238; *Kohn v. Superior Court (Horn)* (1983) 142 Cal.App.3d 323, 327).

III. ANALYSIS

Here, Defendant TBS seeks to enforce the settlement between TBS and the plaintiff for $10,000.00 (“Settlement Amount”) as it meets the *Tech-Bilt* factors and is not disproportionate or out of the ballpark. TBS and the plaintiff reached this settlement with the assistance by mediator Bob Bellagamba (Declaration of Nora R. Boardman, p.8). Defendant TBS asserts that the scope of work in the construction of the plaintiff’s’ residence was limited to providing windows. (TBS’s motion, p. 3). TBS avers that the plaintiff’s do not have any allegations against the windows that were delivered. (*Id*., at p. 5). TBS was not responsible for installation of the windows. (*Id.,* at p. 4). However, TBS seeks to resolve the matter and reached a settlement with the plaintiff and provided notice to non-settling parties. TBS asserts that due to its limited role in construction and no allegations against the windows that were delivered, the Settlement Amount is not grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate Defendant TBS’s liability to be in this matter. (*Id.*). TBS asserts that there is no evidence of collusion, fraud, or tortious conduct aimed at injuring the non-settling defendants. Therefore, the early resolution between the plaintiff and TBS reflect a reasonable range or within-the-ballpark test. (*Tech-Bilt, supra,* 38 Cal.3d at 499-500).

The motion is unopposed. Code of Civil Procedure section 877(a)(2) requires an opposition by any non-settling parties within 25 days of mail notice. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Thus, there has been no showing that the settlement between the plaintiffs and Defendant TBS was not made in good faith.

The Court finds that the moving/party Defendant TBS has met its burden.

IV. CONCLUSION

Based on the foregoing, the motion for determination of good faith settlement between the plaintiffs and Defendant TBS is GRANTED. The Court will prepare the Order.

Calendar Lines # 7

Case Name Lauren McGuire vs Ford Motor Company et al

Case No. 26CV485736

Petition to Compel Arbitration

I. BACKGROUND

Plaintiff Lauren McGuire ("Plaintiff") purchased a 2020 Ford Explorer ("Subject Vehicle") in November 2020 from Future Ford Lincoln of Concord (Dealership). (Complaint at ¶ 7). Plaintiff delivered the Subject Vehicle to Defendant for substantial repair on at least one occasion. (*Id.* at ¶ 60). Plaintiff alleges that Defendant "breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards." (*Id.* at ¶ 62). Plaintiff sued Dealership and Ford Motor Company in January 2026. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership's petition to compel arbitration, based on the Retail Installment Sales Contract ("RISC") signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC's arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure Code of Civil Procedure section 1281.2: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement."

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); see also *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060). The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement's existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755).

Dealership maintains that the FAA governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp 6:25-7:1). The arbitration provision states "[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration." (Declaration of Trina Clayton ["Clayton Decl."], Ex. A.) Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130). To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir.